

6. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: MOTIN TO COMPEL
FILED BY:

TENTATIVE RULING:

Plaintiff Niraj Gandhi moves to Compel Further Responses to Special Interrogatories (Set One), and for Monetary, Issue and Evidence Sanctions against Defendant San Ramon Regional Medical Center. The motion is **denied**.

Factual Background

Plaintiff does not include a description of the factual allegations in the lawsuit to give context to the relevance of the discovery sought. The Court draws upon the factual background from the Opposition papers. This action arises out of an allegation that defendant lost catheterization images of Plaintiff and knowingly concealed that from him.

Discussion

The motion is procedurally deficient. Plaintiff has failed to comply with California Rules of Court, Rule 3.1345(c). Rule 3.1345(c) requires that Plaintiff's Separate Statement in support of his motion include "[t]he text of the request, interrogatory, question, or inspection demand," "[t]he text of each response, answer, or objection, and any further responses or answers" and "[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it." (Rule of Ct, 3.1345(c)(1)-(2). The court may deny the motion on the basis that the Separate Statement did not comply with Rule 3.1345(c).

Plaintiffs' Separate Statement fails to include the entirety of the interrogatories in question and the entirety of Defendant's responses to the interrogatories in question. In addition, the Separate Statement fails to include the definitions that Plaintiff outlined in the beginning of his interrogatories to define terms including, but not limited to "INCIDENT," "MANAGEMENT," KEY DECISION MAKER." Plaintiff specifically cherry picked portions of the interrogatories and Defendant's responses to provide to the Court in his Separate Statement. The court finds that Plaintiff's failure to comply with the Rules of Court is without justification. This is one reason the motion to compel is denied.

The court also finds no basis for concluding that Defendant has willfully or in bad faith obstructed discovery. Plaintiff's assertions that Defendant did not perform a reasonable investigation is sheer speculation and not supported by evidence. Plaintiff also writes as if the instant motion was for compelling further responses to Requests for Admission, which it is not. Plaintiff's accusations of "proven bad faith" are baseless and unsupported by any record. The Court finds that the middle finger comment was in the context of what Defendant might recover at the end of the case, not in a statement defining what would or would not be produced in discovery.

Order

The motion to compel further responses is denied.

Defendant is correct in that a self-represented litigant cannot recover attorney's fees as a discovery sanction. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1017; see also *Aragman v. Ratan* (1999) 73 Cal.App.4th 1173.) Plaintiff has not shown that he incurred any attorney's fees in bringing this motion.

A second and independent reason for denying Plaintiff's motion for sanctions is that his motion to compel further responses is denied.

A third reason for denying the request for sanctions of any kind is that the Plaintiff has not shown that Defendant has participated in or promoted unusual or egregious discovery abuse. The actions Plaintiffs contend constitute a misuse of discovery: filing a motion to strike punitive damages, and asserting objections to interrogatories, do not constitute discovery abuse. Plaintiff has not made the requisite showing for issue sanctions.

7. 9:00 AM CASE NUMBER: C24-01886
CASE NAME: ALEXANDER REYNOLDS VS. HYUNDAI MOTOR AMERICA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING

The unopposed motion of Christopher J.H. Im to be relieved as counsel for Plaintiff Alexander Reynolds, filed October 21, 2025, is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

The court will revise and sign the submitted order (Judicial Council Form MC-053) with the correction that the next hearing date is a Further Case Management Conference in Dept. 32 at the Wakefield Taylor Courthouse, 725 Court Street, Martinez, CA 94553 on June 9, 2026 at 8:30 am. The court will email the revised order to Counsel Im.

The withdrawal is effective upon Counsel Im's filing the proof of service of the signed order on the client and all parties.